

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[213 NE3d 102, 192 NYS3d 42]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ELSUN
WHEELER, Respondent.

Decided May 18, 2023

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered January 26, 2022. The Appellate Division (1) reversed, on the law and as a matter of discretion in the interest of justice, a judgment of the Supreme Court, Kings County (Vincent M. Del Giudice, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree and assault in the second degree; (2) dismissed the count of the indictment charging defendant with assault in the second degree; (3) granted that branch of defendant's omnibus motion which was to suppress two identifications of defendant from arrest photographs; and (4) ordered a new trial on the count of the indictment charging defendant with burglary in the second degree, to be preceded by a hearing to determine whether an independent source existed for the burglary complainant's identification. The appeal to the Appellate Division brought up for review the denial, after a hearing, of that branch of the defendant's omnibus motion which was to suppress identification evidence.

People v Wheeler, 201 AD3d 960, reversed.

HEADNOTE

Crimes — Assault — Physical Injury — Sufficiency of Evidence

The evidence supporting defendant's conviction for assault in the second degree, viewed in the light most favorable to the People, was sufficient to establish physical injury for the purposes of Penal Law § 120.05 (3). The victim

testified that defendant delivered a very hard blow to his face, that he felt pain, and that he experienced bleeding and swelling. Hospital records described the victim's pain as "aching" and indicated he was directed to take over-the-counter painkillers.

APPEARANCES OF COUNSEL

Eric Gonzalez, District Attorney, Brooklyn (Keith Dolan of counsel), for appellant.

Twyla Carter, The Legal Aid Society, New York City (Tomoe Murakami Tse of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be reversed, and the case remitted to the Appellate Division for consideration of the facts and issues raised but not determined on appeal to that Court. Defendant's challenge to the legal sufficiency of the evidence supporting his conviction for assault in the second degree was preserved and is reviewable by this Court (*see People v Epakchi*, 37 NY3d 39, 44 [2021]). The victim testified that defendant delivered a very hard blow to his face, that he felt pain, and that he experienced bleeding and swelling. Hospital records describe the victim's pain as "aching" and indicate he was directed to take over-the-counter painkillers. Viewing the evidence in the light most favorable to the People, it was sufficient to establish physical injury for the purposes of Penal Law § 120.05 (3) (*see People v Chiddick*, 8 NY3d 445 [2007]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Second Department, for consideration of facts and issues raised but not determined on the appeal to that Court, in a memorandum.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2023 through June 30, 2023)

People v Alcaraz-Ubiles	4th Dept: 215 AD3d 1264 (Monroe)	denied 6/27/23 (Garcia, J.)
People v Almenteros	3d Dept: 214 AD3d 1027 (Ulster)	denied 6/16/23 (Rivera, J.)
People v Alvarez	County Ct, 3/27/23 (Monroe)	denied 6/30/23 (Singas, J.)
People v Amore	2d Dept: 214 AD3d 1000 (Richmond)	denied 6/27/23 (Halligan, J.)
People v Arteca	App Term, 2d Dept, 9th & 10th Jud Dists: 78 Misc 3d 36 (Suffolk)	denied 6/30/23 (Wilson, Ch. J.)
People v Barney	3d Dept: 215 AD3d 1137 (Essex)	denied 6/28/23 (Rivera, J.)
People v Beckerman	2d Dept: 215 AD3d 881 (Nassau)	denied 6/30/23 (Garcia, J.)
People v Benjamin-Foster	4th Dept: 215 AD3d 1277 (Monroe)	denied 6/21/23 (Garcia, J.)
People v Blake	1st Dept: 212 AD3d 411 (NY)	denied 6/30/23 (Wilson, Ch. J.)
People v Blond	App Div, 3d Dept: 2023 NY Slip Op 61504(U) (Schenectady)	dismissed 6/22/23 (Troutman, J.)
People v Boffil-Leyro	App Div, 4th Dept, 4/20/23 (Ontario)	dismissed 6/28/23 (Rivera, J.)
People v Bundy	1st Dept: 213 AD3d 534 (NY)	denied 6/27/23 (Cannataro, J.)
People v Burton	3d Dept: 215 AD3d 1054 (Broome)	denied 6/22/23 (Garcia, J.)
People v Byrd	4th Dept: 214 AD3d 1321 (Onondaga)	denied 6/28/23 (Rivera, J.)
People v Casey	3d Dept: 214 AD3d 1121 (Ulster)	denied 6/27/23 (Halligan, J.)
People v Chan	3d Dept: 214 AD3d 1071 (Albany)	denied 6/22/23 (Troutman, J.)
People v Chiantella	2d Dept: 214 AD3d 668 (Nassau)	denied 6/22/23 (Troutman, J.)
People v Cofield	2d Dept: 215 AD3d 882 (Nassau)	denied 6/28/23 (Rivera, J.)
People v Cole	3d Dept: 215 AD3d 1064 (Schenectady)	denied 6/16/23 (Rivera, J.)
People v Cook	4th Dept: 215 AD3d 1273 (Monroe)	denied 6/16/23 (Rivera, J.)
People v Cruz (Erick)	1st Dept: 213 AD3d 465 (NY)	denied 6/16/23 (Rivera, J.)
People v Cruz (Steven)	1st Dept: 213 AD3d 502 (NY)	denied 6/16/23 (Troutman, J.)
People v Davis (Monet)	1st Dept: 215 AD3d 407 (NY)	denied 6/21/23 (Garcia, J.)
People v Davis (Thomas)	4th Dept: 214 AD3d 1334 (Monroe)	denied 6/30/23 (Singas, J.)

People v Dean (Charles)	4th Dept: 214 AD3d 1398 (Monroe)	denied 6/27/23 (Cannataro, J.)
People v Dean (Clarence)	1st Dept: 210 AD3d 562 (NY)	denied 6/30/23 (Wilson, Ch. J.)
People v Delgado	1st Dept: 214 AD3d 542 (Bronx)	denied 6/5/23 (Singas, J.)
People v DeMonia	3d Dept: 210 AD3d 1140 (Ulster)	denied 6/30/23 (Wilson, Ch. J.)
People v Derverger	3d Dept: 214 AD3d 1261 (Albany)	denied 6/28/23 (Cannataro, J.)
People v Diaz	3d Dept: 213 AD3d 979 (Saratoga)	denied 6/30/23 (Wilson, Ch. J.)
People v Drach	2d Dept: 210 AD3d 795 (Kings)	denied 6/30/23 (Wilson, Ch. J.)
People v Dungey	3d Dept: 216 AD3d 1367 (Chenango)	denied 6/28/23 (Rivera, J.)
People v Esquilin	1st Dept: 212 AD3d 468 (Bronx)	denied 6/22/23 (Troutman, J.)
People v Feliciano	1st Dept: 212 AD3d 474 (NY)	denied 6/27/23 (Cannataro, J.)
People v Finn	3d Dept: 215 AD3d 1179 (Albany)	denied 6/22/23 (Troutman, J.)
People v Frasier	1st Dept: 211 AD3d 487 (NY)	denied 6/30/23 (Wilson, Ch. J.)
People v Frazier (Canaan)	2d Dept: 211 AD3d 1033 (Kings)	denied 6/22/23 (Troutman, J.)
People v Frazier (Malcom)	4th Dept: 214 AD3d 1352 (Monroe)	denied 6/22/23 (Garcia, J.)
People v Fricke	4th Dept: 216 AD3d 1446 (Ontario)	denied 6/30/23 (Singas, J.)
People v Frierson	3d Dept: 214 AD3d 1083 (Albany)	denied 6/30/23 (Singas, J.)
People v Garcia	App Div, 4th Dept, 4/4/23 (Monroe)	dismissed 6/30/23 (Singas, J.)
People v Garrett	1st Dept: 214 AD3d 611 (Bronx)	denied 6/22/23 (Troutman, J.)
People v Gilliam	App Term, 1st Dept: 78 Misc 3d 131(A) (Bronx)	denied 6/30/23 (Singas, J.)
People v Gittens	2d Dept: 214 AD3d 670 (Kings)	denied 6/20/23 (Troutman, J.)
People v Graham (Carlos)	3d Dept: 215 AD3d 998 (Greene)	denied 6/20/23 (Troutman, J.)
People v Graham (Shaquan)	App Div, 4th Dept, 5/28/20 (Onondaga)	dismissed 6/30/23 (Wilson, Ch. J.)
People v Graham (Terrence)	1st Dept: 215 AD3d 434 (NY)	denied 6/16/23 (Rivera, J.)
People v Greene	1st Dept: 213 AD3d 418 (NY)	granted 6/20/23 (Troutman, J.)
People v Gue	2d Dept: 214 AD3d 1002 (Rockland)	denied 6/22/23 (Troutman, J.)

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People v Hairston	2d Dept: 213 AD3d 694 (Kings)	denied 6/15/23 (Rivera, J.)
People v Harvey	2d Dept: 214 AD3d 672 (Queens)	denied 6/27/23 (Cannataro, J.)
People v Hawkins	2d Dept: 214 AD3d 899 (Queens)	denied 6/22/23 (Troutman, J.)
People v Hendricks	4th Dept: 214 AD3d 1466 (Monroe)	dismissed 6/30/23 (Singas, J.)
People v Hernandez	1st Dept: 214 AD3d 607 (NY)	denied 6/16/23 (Rivera, J.)
People v Hilliard	3d Dept: 214 AD3d 1259 (Sullivan)	denied 6/22/23 (Troutman, J.)
People v Howard	4th Dept: 215 AD3d 1257 (Monroe)	denied 6/21/23 (Garcia, J.)
People v Hutchins	3d Dept: 215 AD3d 1144 (Essex)	denied 6/23/23 (Troutman, J.)
People v Isaac	App Div, 4th Dept, 3/16/23 (Onondaga)	dismissed 6/27/23 (Halligan, J.)
People v Jacobs	3d Dept: 214 AD3d 1258 (Albany)	denied 6/30/23 (Wilson, Ch. J.)
People v Jeanty	App Div, 2d Dept: 2023 NY Slip Op 62474(U) (Orange)	dismissed 6/30/23 (Wilson, Ch. J.)
People v Jenkins	1st Dept: 214 AD3d 517 (NY)	denied 6/20/23 (Troutman, J.)
People v Johnson	4th Dept: 215 AD3d 1282 (Monroe)	denied 6/30/23 (Wilson, Ch. J.)
People v Jones	4th Dept: 211 AD3d 1489 (Onondaga)	denied 6/30/23 (Wilson, Ch. J.)
People v Kears	1st Dept: 214 AD3d 438 (NY)	denied 6/30/23 (Wilson, Ch. J.)
People v Kimball	3d Dept: 213 AD3d 1028 (Saratoga)	denied 6/30/23 (Wilson, Ch. J.)
People v Knighton	App Div, 4th Dept, 3/28/23 (Onondaga)	dismissed 6/22/23 (Garcia, J.)
People v Leckie	1st Dept: 214 AD3d 612 (NY)	denied 6/23/23 (Troutman, J.)
People v Lee	1st Dept: 214 AD3d 457 (NY)	denied 6/20/23 (Troutman, J.)
People v Lewis	2d Dept: 215 AD3d 982 (Nassau)	denied 6/30/23 (Rivera, J.)
People v Lindsay	2d Dept: 213 AD3d 867 (Queens)	denied 6/27/23 (Cannataro, J.)
People v Llanos	2d Dept: 215 AD3d 691 (Westchester)	denied 6/30/23 (Wilson, Ch. J.)
People v Loya	3d Dept: 215 AD3d 1181 (Saratoga)	denied 6/22/23 (Garcia, J.)
People v Makropoulos	2d Dept: 211 AD3d 968 (Rockland)	denied 6/30/23 (Wilson, Ch. J.)
People v Marshall	4th Dept: 214 AD3d 1360 (Onondaga)	denied 6/30/23 (Wilson, Ch. J.)

People v McDuffie	App Term, 1st Dept: 78 Misc 3d 131(A) (NY)	denied 6/22/23 (Garcia, J.)
People v McKenzie-Smith	4th Dept: 207 AD3d 1251 (Monroe)	denied 6/30/23 (Wilson, Ch. J.)
People v McMorris	4th Dept: 214 AD3d 1447 (Monroe)	denied 6/30/23 (Singas, J.)
People v Mercado	App Div, 2d Dept: 2023 NY Slip Op 63180(U) (Westchester)	dismissed 6/5/23 (Rivera, J.)
People v Miller (Marcus)	2d Dept: 212 AD3d 735 (Queens)	denied 6/30/23 (Singas, J.)
People v Miller (Shyquan)	3d Dept: 215 AD3d 1141 (Albany)	denied 6/21/23 (Garcia, J.)
People v Mohan	2d Dept: 215 AD3d 766 (Queens)	denied 6/30/23 (Rivera, J.)
People v Moore	2d Dept: 215 AD3d 884 (Richmond)	denied 6/22/23 (Troutman, J.)
People v Murphy (Kareem)	3d Dept: 215 AD3d 1075 (Albany)	denied 6/28/23 (Rivera, J.)
People v Murphy (Kareem)	3d Dept: 215 AD3d 1071 (Albany)	denied 6/28/23 (Rivera, J.)
People v Naquan H.	1st Dept: 213 AD3d 426 (Bronx)	denied 6/16/23 (Troutman, J.)
People v Nash	4th Dept: 214 AD3d 1461 (Wayne)	denied 6/27/23 (Cannataro, J.)
People v Newman	4th Dept: 214 AD3d 1451 (Monroe)	denied 6/22/23 (Garcia, J.)
People v Parson	4th Dept: 214 AD3d 1459 (Onondaga)	denied 6/27/23 (Cannataro, J.)
People v Patterson (Charles)	1st Dept: 215 AD3d 561 (NY)	denied 6/28/23 (Rivera, J.)
People v Patterson (Darren)	App Div, 2d Dept: 2022 NY Slip Op 74157(U) (Queens)	dismissed 6/26/23 (Troutman, J.)
People v Payne	App Term, 1st Dept: 78 Misc 3d 131(A) (Bronx)	denied 6/30/23 (Singas, J.)
People v Pereira	App Term, 1st Dept: 78 Misc 3d 130(A) (NY)	denied 6/30/23 (Wilson, Ch. J.)
People v Pettiford	1st Dept: 216 AD3d 520 (Bronx)	denied 6/16/23 (Rivera, J.)
People v Pugh	County Ct, 4/11/23 (Monroe)	denied 6/28/23 (Halligan, J.)
People v Rivera	2d Dept: 210 AD3d 805 (Richmond)	denied 6/30/23 (Wilson, Ch. J.)
People v Roberts	4th Dept: 213 AD3d 1348 (Monroe)	denied 6/27/23 (Cannataro, J.)
People v Rodriguez (Andres)	App Div, 1st Dept: 2023 NY Slip Op 61633(U) (NY)	dismissed 6/5/23 (Rivera, J.)
People v Rodriguez (Liz)	1st Dept: 215 AD3d 600 (Bronx)	denied 6/27/23 (Halligan, J.)
People v Romualdo	2d Dept: 215 AD3d 692 (Suffolk)	dismissed 6/27/23 (Halligan, J.)

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People v Ross	1st Dept: 212 AD3d 473 (NY)	denied 6/30/23 (Wilson, Ch. J.)
People v Smith	4th Dept: 214 AD3d 1424 (Monroe)	denied 6/30/23 (Wilson, Ch. J.)
People v Soto	4th Dept: 210 AD3d 1502 (Monroe)	denied 6/30/23 (Rivera, J.)
People v Souclat-Vega	4th Dept: 215 AD3d 1272 (Monroe)	denied 6/30/23 (Singas, J.)
People v Souss	App Term, 1st Dept: 2023 NY Slip Op 50136(U) (NY)	denied 6/30/23 (Singas, J.)
People v Stewart	4th Dept: 210 AD3d 1445 (Monroe)	denied 6/30/23 (Wilson, Ch. J.)
People v Stokes	App Div, 4th Dept, 4/4/23 (Wayne)	dismissed 6/21/23 (Garcia, J.)
People v Taylor	1st Dept: 215 AD3d 431 (NY)	denied 6/21/23 (Garcia, J.)
People v Thomas (Dashawn)	2d Dept: 215 AD3d 693 (Orange)	denied 6/27/23 (Halligan, J.)
People v Thomas (James)	3d Dept: 215 AD3d 1052 (Broome)	denied 6/30/23 (Singas, J.)
People v Thompson	App Div, 2d Dept: 2022 NY Slip Op 69322(U) (Queens)	dismissed 6/22/23 (Troutman, J.)
People v Vakhoula	3d Dept: 215 AD3d 1134 (Sullivan)	denied 6/16/23 (Rivera, J.)
People v Vanwuyckhuysse	4th Dept: 213 AD3d 1289 (Monroe)	denied 6/30/23 (Wilson, Ch. J.) (Appeal No. 2)
People v Vasquez	1st Dept: 215 AD3d 408 (Bronx)	denied 6/22/23 (Troutman, J.)
People v Villanueva	2d Dept: 213 AD3d 957 (Kings)	denied 6/20/23 (Troutman, J.)
People v Wagoner	App Div, 4th Dept, 3/13/23 (Cattaraugus)	dismissed 6/30/23 (Wilson, Ch. J.)
People v Washington	2d Dept: 214 AD3d 910 (Orange)	denied 6/27/23 (Halligan, J.)
People v Watkins	1st Dept: 206 AD3d 452 (NY)	granted 6/22/23 (Troutman, J.)
People v Whitehurst	App Div, 3d Dept, 4/14/22 (Ulster)	denied reconsideration 6/26/23 (Troutman, J.)
People v Williams (Henderson)	4th Dept: 214 AD3d 1395 (Erie)	denied 6/27/23 (Cannataro, J.)
People v Williams (Jair)	App Div, 2d Dept: 2021 NY Slip Op 76589(U) (Kings)	dismissed 6/6/23 (Wilson, Ch. J.)
People v Williams (Robert)	4th Dept: 215 AD3d 1279 (Onondaga)	denied 6/27/23 (Halligan, J.)
People v Williams (Terrell)	2d Dept: 215 AD3d 694 (Kings)	denied 6/30/23 (Singas, J.)
People v Wise	County Ct, 4/19/23 (Steuben)	denied 6/27/23 (Singas, J.)

People v “Wood”	4th Dept: 215 AD3d 1244 (Monroe)	denied 6/30/23 (Singas, J.)
People v Woodard	4th Dept: 215 AD3d 1244 (Monroe)	denied 6/30/23 (Singas, J.)
People v Yanga (Tombe)	4th Dept: 213 AD3d 1276 (Erie)	denied 6/30/23 (Wilson, Ch. J.) (Appeal No. 1)
People v Yanga (Tombe)	4th Dept: 213 AD3d 1278 (Erie)	denied 6/30/23 (Wilson, Ch. J.) (Appeal No. 2)
People v Yanga (Tombe)	4th Dept: 213 AD3d 1278 (Erie)	denied 6/30/23 (Wilson, Ch. J.) (Appeal No. 3)
People v Yanga (Tombe)	4th Dept: 213 AD3d 1278 (Erie)	denied 6/30/23 (Wilson, Ch. J.) (Appeal No. 4)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(June 1, 2023 through June 30, 2023)

People v Hayward	3d Dept: 213 AD3d 989 (Fulton)	granted 6/15/23 (Lynch, J.)
People v Spirito	3d Dept: 216 AD3d 1208 (Tioga)	granted 6/8/23 (Aarons, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2023 through July 31, 2023)

People v Acosta	4th Dept: 215 AD3d 1246 (Monroe)	denied 7/31/23 (Cannataro, J.)
People v Alfonso	1st Dept: 217 AD3d 511 (Bronx)	denied 7/31/23 (Singas, J.)
People v Allgood	2d Dept: 216 AD3d 995 (Suffolk)	denied 7/19/23 (Garcia, J.)
People v Anonymous	1st Dept: 213 AD3d 580 (NY)	denied 7/7/23 (Cannataro, J.)
People v Arjun	2d Dept: 216 AD3d 811 (Queens)	denied 7/13/23 (Rivera, J.)
People v Arriaza-Ortega	2d Dept: 216 AD3d 1175 (Rockland)	denied 7/31/23 (Halligan, J.)
People v Ashley	4th Dept: 216 AD3d 1439 (Cayuga)	denied 7/20/23 (Garcia, J.)
People v Austin	4th Dept: 214 AD3d 1391 (Erie)	denied 7/12/23 (Singas, J.)
People v Avant	2d Dept: 216 AD3d 662 (Nassau)	denied 7/28/23 (Wilson, Ch. J.)

* Includes only applications that were granted.

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People v B	3d Dept: 215 AD3d 1123 (Albany)	denied 7/31/23 (Singas, J.)
People v Bailey	1st Dept: 213 AD3d 499 (NY)	denied 7/7/23 (Cannataro, J.)
People v Baptiste	1st Dept: 216 AD3d 577 (NY)	withdrawn 7/17/23 (Rivera, J.)
People v Barbosa	2d Dept: 216 AD3d 812 (Queens)	denied 7/31/23 (Cannataro, J.)
People v Barnes	4th Dept: 216 AD3d 1424 (Monroe)	denied 7/12/23 (Singas, J.)
People v Bianculli	App Term, 2d Dept, 9th & 10th Jud Dists: 78 Misc 3d 133(A) (Suffolk)	denied 7/5/23 (Troutman, J.)
People v Boodoosingh	2d Dept: 217 AD3d 677 (Kings)	denied 7/31/23 (Singas, J.)
People v Bowens	1st Dept: 216 AD3d 410 (NY)	denied 7/6/23 (Troutman, J.)
People v Brisman	3d Dept: 200 AD3d 1219 (Chemung)	granted 7/19/23 (Wilson, Ch. J.)
People v Brown	App Term, 1st Dept: 78 Misc 3d 127(A) (NY)	denied 7/5/23 (Troutman, J.)
People v BU	3d Dept: 215 AD3d 1123 (Albany)	denied 7/31/23 (Singas, J.)
People v Bullock	4th Dept: 213 AD3d 1351 (Onondaga)	denied 7/28/23 (Wilson, Ch. J.)
People v Carr	1st Dept: 216 AD3d 462 (NY)	denied 7/31/23 (Halligan, J.)
People v Cleveland	4th Dept: 217 AD3d 1346 (Monroe)	denied ¹ 7/31/23 (Singas, J.)
People v Cornish	4th Dept: 214 AD3d 1456 (Steuben)	denied 7/19/23 (Garcia, J.)
People v Crosby	4th Dept: 215 AD3d 1225 (Oneida)	denied 7/19/23 (Garcia, J.)
People v Curtis	1st Dept: 217 AD3d 535 (NY)	denied 7/26/23 (Rivera, J.)
People v Davenport	1st Dept: 215 AD3d 576 (NY)	denied 7/20/23 (Garcia, J.)
People v Defelice	3d Dept: 216 AD3d 1257 (Tompkins)	denied 7/31/23 (Singas, J.)
People v Dixon	2d Dept: 211 AD3d 1030 (Queens)	granted 7/18/23 (Troutman, J.)
People v Duque	App Div, 2d Dept: 2022 NY Slip Op 75017(U) (Queens)	denied reconsideration 7/5/23 (Troutman, J.)
People v Erdaide	2d Dept: 216 AD3d 1178 (Queens)	denied 7/26/23 (Wilson, Ch. J.)

1. Denied with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Perdue* (203 AD3d 1638 [4th Dept 2022], *lv granted* 38 NY3d 1073 [2022], *rearg granted* 39 NY3d 1120 [2023]).

People v Estrella (Jonaiki)	1st Dept: 214 AD3d 459 (Bronx)	denied 7/18/23 (Troutman, J.)
People v Estrella (Jonaiki)	1st Dept: 214 AD3d 459 (Bronx)	granted 7/18/23 (Troutman, J.)
People v Faublas	3d Dept: 216 AD3d 1358 (Schenectady)	denied 7/13/23 (Rivera, J.)
People v Fishman	App Div, 2d Dept: 2023 NY Slip Op 62264(U) (Westchester)	denied reconsideration 7/25/23 (Garcia, J.)
People v Francis	2d Dept: 215 AD3d 762 (Kings)	denied 7/31/23 (Singas, J.)
People v Franklin	3d Dept: 216 AD3d 1304 (Chenango)	denied 7/6/23 (Troutman, J.)
People v G	3d Dept: 216 AD3d 1358 (Schenectady)	denied 7/13/23 (Rivera, J.)
People v Gaillard	1st Dept: 215 AD3d 459 (NY)	denied 7/13/23 (Rivera, J.)
People v Gaity	2d Dept: 216 AD3d 667 (Kings)	denied 7/13/23 (Rivera, J.)
People v Gilchrist	2d Dept: 216 AD3d 816 (Orange)	denied 7/26/23 (Rivera, J.)
People v Gill	1st Dept: 215 AD3d 458 (NY)	denied 7/5/23 (Troutman, J.)
People v Gonzalez	App Term, 1st Dept: 78 Misc 3d 135(A) (NY)	denied 7/31/23 (Singas, J.)
People v Graham (Kareem)	3d Dept: 214 AD3d 1256 (Schenectady)	denied 7/19/23 (Garcia, J.)
People v Graham (Lairon)	4th Dept: 215 AD3d 1263 (Erie)	denied 7/7/23 (Rivera, J.)
People v Graubard	2d Dept: 214 AD3d 143 (Dutchess)	dismissed 7/20/23 (Garcia, J.)
People v Gregory	1st Dept: 214 AD3d 543 (Bronx)	denied 7/7/23 (Cannataro, J.)
People v Hawkins	4th Dept: 214 AD3d 1442 (Monroe)	denied 7/7/23 (Cannataro, J.)
People v Henderson	2d Dept: 216 AD3d 668 (Queens)	denied 7/28/23 (Wilson, Ch. J.)
People v Hernandez	1st Dept: 213 AD3d 425 (NY)	granted 7/25/23 (Wilson, Ch. J.)
People v Heyward	1st Dept: 214 AD3d 578 (NY)	denied ² 7/7/23 (Cannataro, J.)
People v Hill (Aubrey)	2d Dept: 216 AD3d 817 (Suffolk)	denied 7/10/23 (Rivera, J.)
People v Hill (Curtis)	1st Dept: 216 AD3d 551 (NY)	denied 7/18/23 (Troutman, J.)
People v Hinton	App Div, 4th Dept, 5/2/23 (Herkimer)	dismissed 7/14/23 (Halligan, J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Jordan* (201 AD3d 946 [2d Dept 2022], *lv granted* 38 NY3d 1134 [2022]).

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People v Holguin	1st Dept: 216 AD3d 436 (NY)	denied 7/14/23 (Singas, J.)
People v Hunter	App Div, 4th Dept: 2023 NY Slip Op 67600(U) (Monroe)	dismissed 7/25/23 (Garcia, J.)
People v Husted	4th Dept: 215 AD3d 1269 (Onondaga)	denied 7/26/23 (Wilson, Ch. J.)
People v Jackson	App Div, 3d Dept: 2023 NY Slip Op 63911(U) (Clinton)	denied reconsideration 7/26/23 (Singas, J.)
People v Jamel	3d Dept: 214 AD3d 1256 (Schenectady)	denied 7/19/23 (Garcia, J.)
People v James	3d Dept: 215 AD3d 1176 (Sullivan)	denied 7/6/23 (Troutman, J.)
People v Johnson (Allen)	App Div, 3d Dept: 2023 NY Slip Op 64786(U) (Albany)	dismissed 7/5/23 (Troutman, J.)
People v Johnson (Hasaan)	County Ct, 4/21/23 (Monroe)	denied 7/7/23 (Rivera, J.)
People v Jones	3d Dept: 215 AD3d 1123 (Albany)	denied 7/31/23 (Singas, J.)
People v Kopald	App Term, 2d Dept, 9th & 10th Jud Dists: 78 Misc 3d 134(A) (Orange)	denied 7/14/23 (Halligan, J.)
People v Lashley	1st Dept: 214 AD3d 567 (NY)	denied 7/28/23 (Wilson, Ch. J.)
People v Longo	1st Dept: 212 AD3d 471 (Bronx)	denied 7/10/23 (Rivera, J.)
People v Lopez	App Term, 1st Dept: 78 Misc 3d 132(A) (Bronx)	denied 7/20/23 (Garcia, J.)
People v Luis R.	2d Dept: 216 AD3d 672 (Kings)	denied 7/31/23 (Cannataro, J.)
People v Mabry	4th Dept: 214 AD3d 1300 (Monroe)	denied 7/7/23 (Cannataro, J.)
People v Macon	4th Dept: 217 AD3d 1415 (Monroe)	denied 7/28/23 (Wilson, Ch. J.)
People v McCutcheon	4th Dept: 214 AD3d 1446 (Erie)	denied 7/7/23 (Cannataro, J.)
People v McKenzie	1st Dept: 213 AD3d 531 (NY)	denied 7/7/23 (Rivera, J.)
People v McTyere	4th Dept: 215 AD3d 1274 (Niagara)	denied 7/28/23 (Wilson, Ch. J.)
People v Medina	App Div, 2d Dept: 2023 NY Slip Op 65316(U) (Queens)	dismissed 7/14/23 (Singas, J.)
People v Miller	4th Dept: 204 AD3d 1438 (Steuben)	denied 7/28/23 (Wilson, Ch. J.)
People v Montes	App Div, 3d Dept: 2021 NY Slip Op 66472(U) (Albany)	denied 7/26/23 (Singas, J.)
People v Mordle	App Term, 1st Dept: 77 Misc 3d 141(A) (Bronx)	denied 7/7/23 (Cannataro, J.)
People v Morrison	4th Dept: 216 AD3d 1430 (Oneida)	denied 7/28/23 (Wilson, Ch. J.)

People v Muhammad	App Div, 4th Dept: 2022 NY Slip Op 73652(U) (Monroe)	dismissed 7/28/23 (Wilson, Ch. J.)
People v Myles	4th Dept: 216 AD3d 1419 (Monroe)	denied 7/31/23 (Singas, J.)
People v Nelson	1st Dept: 215 AD3d 503 (Bronx)	denied 7/19/23 (Garcia, J.)
People v Nieves	1st Dept: 217 AD3d 424 (NY)	denied 7/26/23 (Wilson, Ch. J.)
People v Outlaw	1st Dept: 211 AD3d 513 (NY)	denied 7/7/23 (Cannataro, J.)
People v Parilla	4th Dept: 214 AD3d 1399 (Erie)	denied 7/7/23 (Cannataro, J.)
People v Patterson	2d Dept: 214 AD3d 674 (Orange)	denied 7/27/23 (Troutman, J.)
People v Peacock	2d Dept: 216 AD3d 1181 (Kings)	denied 7/25/23 (Garcia, J.)
People v Register	2d Dept: 217 AD3d 686 (Richmond)	denied 7/31/23 (Halligan, J.)
People v Reibel	4th Dept: 215 AD3d 1299 (Erie)	denied 7/31/23 (Halligan, J.)
People v Restrepo	2d Dept: 216 AD3d 1183 (Queens)	denied 7/13/23 (Rivera, J.)
People v Robinson	2d Dept: 214 AD3d 904 (Queens)	denied 7/5/23 (Troutman, J.)
People v Rodriguez (Alberto)	1st Dept: 216 AD3d 412 (NY)	denied 7/26/23 (Wilson, Ch. J.)
People v Rodriguez (Orlando)	App Div, 1st Dept: 2022 NY Slip Op 60819(U) (NY)	denied reconsideration 7/31/23 (Cannataro, J.)
People v Sanchez	App Div, 1st Dept: 2023 NY Slip Op 66032(U) (NY)	denied 7/5/23 (Troutman, J.)
People v Sanders	4th Dept: 214 AD3d 1441 (Erie)	denied 7/7/23 (Cannataro, J.)
People v Scarbrough	4th Dept: 211 AD3d 1636 (Niagara)	denied 7/26/23 (Wilson, Ch. J.)
People v Sides (Sam)	4th Dept: 215 AD3d 1250 (Ontario)	denied 7/31/23 (Singas, J.) (Appeal No. 1)
People v Sides (Sam)	4th Dept: 215 AD3d 1253 (Ontario)	denied 7/31/23 (Singas, J.) (Appeal No. 2)
People v Spencer	1st Dept: 215 AD3d 562 (Bronx)	denied 7/14/23 (Singas, J.)
People v Stewart	2d Dept: 216 AD3d 1005 (Westchester)	denied 7/19/23 (Garcia, J.)
People v Sullivan	County Ct, 2/6/23 (Erie)	granted 7/5/23 (Troutman, J.)
People v Suttles	4th Dept: 214 AD3d 1313 (Erie)	denied 7/28/23 (Wilson, Ch. J.)
People v Sweet	App Div, 3d Dept: 2023 NY Slip Op 66106(U) (Montgomery)	denied 7/13/23 (Rivera, J.)

People v Tohafijian	4th Dept: 216 AD3d 1410 (Seneca)	denied 7/13/23 (Rivera, J.)
People v Vasquez	4th Dept: 211 AD3d 1592 (Monroe)	denied 7/26/23 (Wilson, Ch. J.)
People v Vazquez	4th Dept: 211 AD3d 1592 (Monroe)	denied 7/26/23 (Wilson, Ch. J.)
People v Villanueva-Medina	4th Dept: 216 AD3d 1457 (Monroe)	denied 7/26/23 (Wilson, Ch. J.)
People v Watson	2d Dept: 214 AD3d 911 (Queens)	denied 7/14/23 (Halligan, J.)
People v Yayun Weng	2d Dept: 215 AD3d 986 (Kings)	denied 7/28/23 (Wilson, Ch. J.)
People v White	App Term, 1st Dept: 78 Misc 3d 131(A) (Bronx)	denied 7/26/23 (Wilson, Ch. J.)
People v Wynn	App Div, 1st Dept: 2022 NY Slip Op 71164(U) (NY)	dismissed 7/31/23 (Cannataro, J.)

[216 NE3d 543, 195 NYS3d 182]

In the Matter of MITCHELL Q. SOULES, JR., a Justice of the
Little Falls Town Court, Herkimer County.

Decided July 28, 2023

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44, of whether the Honorable Mitchell Q. Soules, Jr., should be suspended from the office of Little Falls Town Court, Herkimer County, and whether suspension should be with or without pay.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44, suspended a Town Court Justice from office, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Mitchell Q. Soules, Jr., is suspended, with pay, effective immediately, from the office of Justice of the Little Falls Town Court, Herkimer County, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44.

Concur. Chief Judge WILSON, and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN. Judge RIVERA took no part.

[217 NE3d 24, 195 NYS3d 452]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL BRADFORD, Appellant.

Decided June 13, 2023

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered April 29, 2022. The Appellate Division affirmed an order of the Steuben County Court (Patrick F. McAllister, A.J.), which had denied defendant's motion to vacate a judgment of conviction pursuant to CPL 440.10.

People v Bradford, 204 AD3d 1483, reversed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Mode of Proceedings Error — Use of Stun Belt Absent Articulation of Particularized Need

1. Where the People and the trial court were unaware that sheriff officials required defendant to wear a stun belt during trial, the use of the stun belt in the absence of the trial court's articulation of a particularized need for the restraint was error (*People v Buchanan*, 13 NY3d 1 [2009]) but did not constitute a mode of proceedings error. Accordingly, the courts below did not abuse their discretion by summarily denying the portion of defendant's CPL 440.10 motion based on his unpreserved assertion of a *Buchanan* error, which could have been raised before the trial court.

Crimes — Right to Counsel — Effective Representation — Hearing Required

2. Where it was undisputed that sheriff officials required defendant to wear a stun belt at trial, that neither the People nor the trial court were aware of that fact, and that defendant failed to preserve any argument concerning the stun belt, defendant was entitled to a hearing on his ineffective assistance of counsel claim. Given the conceded violation of *People v Buchanan* (13 NY3d 1 [2009]), which requires the trial court to articulate a particularized need for the defendant to wear a stun belt, factual issues existed concerning trial counsel's effectiveness, including whether counsel had a legitimate explanation for declining to object. There had been no hearing concerning whether defendant voiced his concerns about wearing the stun belt to his trial attorney as he contended, and defendant submitted evi-

dence which raised factual questions as to whether he consented to wearing the stun belt at trial.

APPEARANCES OF COUNSEL

Thomas P. Theophilos, Buffalo, for appellant.

Brooks T. Baker, District Attorney, Bath (*John C. Tunney* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be reversed and the matter remitted to County Court for further proceedings in accordance with this memorandum.

[1] It is undisputed that sheriff officials required defendant to wear a stun belt at trial, that neither the People nor the trial court were aware of that fact, and that defendant failed to preserve any argument concerning the stun belt. Because the trial court did not articulate a particularized need for defendant to wear a stun belt, the use of that restraint was error (see *People v Buchanan*, 13 NY3d 1, 4 [2009]). However, this flaw was not a mode of proceedings error (see *People v Cooke*, 24 NY3d 1196, 1197 [2015], *cert denied* 577 US 1011 [2015]; *People v Schrock*, 108 AD3d 1221, 1225-1226 [4th Dept 2013], *lv denied* 22 NY3d 998 [2013]).¹ The courts below thus did not abuse their discretion by summarily denying the portion of defendant's CPL 440.10 motion based on his unpreserved assertion of a *Buchanan* error, which could have been raised before the trial court.

[2] The courts below erred by summarily denying the portion of defendant's motion concerning his ineffective assistance of counsel claim. Given the conceded *Buchanan* violation, factual

1. The dissent's contrary conclusion is based on a misreading of *Cooke*. In that case, as here, "non-judicial personnel" determined that the defendant should wear a stun belt at trial unbeknownst to the county court (*People v Cooke*, 119 AD3d 1399, 1402 [4th Dept 2014, Fahey, J., concurring]). The dissent here says that there was no mode of proceedings error in *Cooke* because the defendant there "retroactive[ly]" consented to wearing a stun belt even though "the trial court was initially unaware that the defendant had been made to wear" it (dissenting op at 943-944). But "[m]ode of proceedings errors are not waivable" and "require reversal even if the defense affirmatively consents to the court's action" (*People v Mack*, 27 NY3d 534, 543 [2016]). If the dissent's mode of proceedings error analysis was correct, the defendant in *Cooke* could not have retroactively consented to the non-judicial personnel's "usurpation of the [trial] court's authority to determine the need for a stun belt" (dissenting op at 944-945 n 6 [emphasis omitted]). Instead, the error would have required "automatic reversal" (*Mack*, 27 NY3d at 540).

issues exist concerning trial counsel's effectiveness. For instance, County Court should determine if counsel had a legitimate explanation for declining to object. There has been no hearing concerning whether defendant voiced his concerns about wearing the stun belt to his trial attorney as he contends (*see People v Stultz*, 2 NY3d 277, 284 [2004] ["An appellate court cannot fault the attorney until after the nonrecord proof has been aired"]). Further, defendant submitted evidence in support of his motion which raises factual questions as to whether he consented to wearing the stun belt at trial (*see Cooke*, 24 NY3d at 1197).² Defendant's ineffective assistance claim should be decided under the applicable standard (*see People v Benevento*, 91 NY2d 708, 712-713 [1998]) on a full record following a hearing (*see* CPL 440.30 [5]).³

RIVERA, J. (dissenting). Defendant challenges the Sheriff's Department's forcible imposition of a stun belt throughout his trial, without the court's knowledge or approval. A stun belt is a battery-operated device which "fit[s] around the waist" and is capable of delivering a "50,000- to 70,000-volt surge through [the wearer], causing immediate loss of muscular control and incapacitation" (Jonathan Turley, *Torture at the Push of a Button*, Washington Post, Aug. 28, 2003, available at <https://www.washingtonpost.com/archive/opinions/2003/08/28/torture-at-the-push-of-a-button/0c962af1-de74-41cf-9a0d-948a369852b0/> [last accessed May 18, 2023]).¹ More than 20 years ago, the United Nations Committee Against

2. There has been no hearing in this matter and, thus, neither County Court nor the Appellate Division made any "factual finding" concerning whether defendant consented to wearing the stun belt (dissenting op at 946 n 8). Nor has any court addressed consent "as a legal matter" (*id.*). Rather, the Appellate Division concluded that a hearing was unnecessary even accepting petitioner's factual allegations.

3. Defendant does not argue that use of stun belts should be abolished and, thus, we do not address that topic.

1. Amnesty International issued a report on the deleterious effects of stun belts, finding that

"[o]n activation, the belt delivers a 50,000 volt, three to four milliamperes shock which lasts eight seconds. This high-pulsed current enters the wearer's body at the site of the electrodes, near the kidneys, and passes through the body, causing a rapid electric shock. The shock causes incapacitation in the first few seconds and severe pain rising during the eight seconds. The electro-shock cannot be stopped once activated" (Amnesty International, *United States of America: Cruelty in Control? The Stun Belt and Other Electro-Shock Equipment in Law Enforcement* at 3-4, June 1999, available

(n. cont'd)

Torture called for abolition of the device, suggesting that its use may violate the international treaty against torture (Elizabeth Olson, *U.S. Prisoner Restraints Amount To Torture, Geneva Panel Says*, NY Times, May 18, 2000, available at <https://www.nytimes.com/2000/05/18/world/us-prisoner-restraints-amount-to-torture-geneva-panel-says.html> [last accessed May 18, 2023]). This Court has recognized that stun belts carry a “known potential for extremely painful and humiliating physical effects” (*People v Cruz*, 17 NY3d 941, 945 n [2011]) and has set procedural safeguards around their use (see generally *People v Buchanan*, 13 NY3d 1 [2009]).

Those procedural safeguards were not followed here when the Sheriff’s Department usurped the trial court’s authority to determine the necessity of a stun belt and mandated defendant wear the physical restraint. Unlike the majority, I conclude that this is a mode of proceedings error and that no factual questions remain regarding defense counsel’s ineffectiveness for failing to object to the belt’s use. Therefore, there is no basis to remit this matter for further proceedings, and I would reverse the conviction and remand the case for a new trial.

I.

In 2011, defendant Daniel Bradford was convicted upon a jury verdict of murder in the second degree, multiple counts of criminal contempt, and offering a false instrument for filing. He was sentenced to a term of imprisonment of 23 years to life.² In 2020, defendant moved pro se to vacate his convictions under CPL 440.10, arguing that he was improperly forced to wear a stun belt throughout his trial. In his supporting affidavit defendant alleged that on the morning his trial commenced, sheriff’s deputies brought him from his jail cell to the booking area, where the deputies placed a stun belt on the counter and explained that it would deliver an electric shock to the wearer

at <https://www.amnesty.org/en/documents/amr51/054/1999/en/> [last accessed May 18, 2023]).

2. On defendant’s direct appeal, the Appellate Division found “a discrepancy between the sentencing minutes and the certificate of conviction” requiring vacatur of the sentences on several counts and reversal of the conviction for offering a false instrument (118 AD3d 1254, 1257 [4th Dept 2014]). On remittal County Court resentenced defendant to 23 years to life on the second-degree murder conviction and a consecutive 2- to 4-year sentence on criminal contempt. The Appellate Division affirmed the resentence and held that it could not review defendant’s repeated ineffective assistance of counsel claims (138 AD3d 1436 [4th Dept 2016]), although the earlier claims were based on conduct unrelated to the stun belt issue.

when activated. They activated the belt so that defendant could see it sparking and then presented him with a form explaining the function of the belt and told him he was required to sign it.³ Defendant complied and was fitted with the belt. When defendant asked his attorney why he was being required to wear it, his attorney replied that it was the Sheriff's Department's policy and there was nothing he could do about it. A deputy overheard the exchange and interjected that the belt was standard policy and defendant was required to wear it. Defendant averred that the belt's prongs stuck into his skin and caused welts by the end of each day, and that throughout the trial deputies sat next to him with an activation button, causing him to worry that the belt might be activated. Defense counsel never raised the issue to the court.⁴

County Court denied defendant's CPL 440.10 motion without a hearing, concluding that the use of a stun belt is not a constitutional issue and is therefore waivable, and that trial counsel was not ineffective for failing to object to the use of the belt. The Appellate Division affirmed over a two-Justice dissent (*People v Bradford*, 204 AD3d 1483 [4th Dept 2022]). Citing *People v Cooke* (24 NY3d 1196 [2015]), the majority held that "improper use of a stun belt is not a mode of proceedings error" and therefore "the failure to object to [its] use means that reversal would not have been required on a direct appeal" (204 AD3d at 1484 [internal quotation marks and emphasis omitted]). The majority also rejected defendant's ineffective assistance of counsel claim, holding that defendant did not establish that the belt was visible to the jury and therefore did not "make a sufficient showing of egregiousness or that his right to a fair trial was compromised" (*id.* at 1485). The dissenters would have reversed and remitted for a hearing on the ineffective assistance claim on the ground that the trial "court erred in summarily denying defendant's CPL 440.10 motion" (*id.* at 1487). One of the dissenting Justices granted leave to appeal.⁵

3. Defendant was presented with this same notice on each day of his trial.

4. According to defendant his appellate counsel informed him that the matter could not be litigated on direct appeal because there was no mention of it in the record.

5. On appeal to this Court, defendant has not pressed a state constitutional challenge to the validity of stun belt restraints. Therefore, I have no occasion to address that issue.

II.

Defendant contends that it was a mode of proceedings error for the Sheriff's Department to require him to wear a stun belt without the trial court's knowledge because non-judicial court personnel may not assume judicial responsibilities. I agree.

A mode of proceedings error goes "to the essential validity of the process and [is] so fundamental that the entire trial is irreparably tainted" (*People v Kelly*, 5 NY3d 116, 120-121 [2005]). Those errors are "immune not only from the rules governing preservation and waiver but also from harmless error analysis" and "require reversal without regard to the prejudice, or lack thereof, to the defendant" (*People v Mack*, 27 NY3d 534, 540 [2016]). We have previously recognized a mode of proceedings error where a court "delegat[es] [its] function" or "discharg[es] some of [its] duties" to a non-judicial official (*People v Ahmed*, 66 NY2d 307, 311-312 [1985]).

The Court has held that while "there are cases in which a court may properly find, considering the nature of the charged offense, the defendant's history and other relevant factors, that a stun belt is necessary" for courtroom security, "a stun belt may not be required unless the trial court makes findings on the record showing that the particular defendant before [it] needs such a restraint" (*Buchanan*, 13 NY3d at 4). We clarified in *Cooke* that a court's imposition of a stun belt without the requisite finding does not amount to a mode of proceedings error (*see* 24 NY3d at 1197), but sheriff's deputies are not judges.

Contrary to the view of the majority, *Cooke* does not control this case or foreclose defendant's argument that a mode of proceedings error occurred. That decision did not reference the precise issue presented by defendant; it simply cited *People v Schrock* (108 AD3d 1221 [4th Dept 2013]) in a string cite for the proposition that a "trial court's failure to make a finding of necessity for [a] stun belt's use does not constitute an unwaivable mode of proceedings error" (*Cooke*, 24 NY3d at 1197). However, the asserted mode of proceedings error in this appeal is not simply the court's failure to make the relevant finding but "the Sheriff's unilateral decision to require defendant to wear a stun belt during trial without the knowledge of the court" (*Schrock* at 1226 [Fahey, J., dissenting]).

Significantly, *Cooke* is factually distinguishable from defendant's appeal. There, the trial court was initially unaware that the defendant had been made to wear a stun belt and consented to its use. At the end of the first day of proof, the court excused

the jury and held an unrecorded sidebar. When the parties went back on the record, defense counsel stated that the defendant had been wearing a stun belt since the beginning of trial and that, although there had been no judicial finding of necessity, the defendant consented to the belt and the consent was retroactive to the beginning of trial. The court then asked defendant directly whether he agreed to wear the belt. When defendant confirmed, the court stated that it would not be making any finding of need for the belt because that finding had not been requested. In other words, in *Cooke* there was no delegation or usurpation of judicial authority, because the defendant's retroactive consent negated the court's initial obligation to make a finding of necessity. That consent was the basis, in part, for our affirmance (*see* 24 NY3d at 1197 [as defendant "expressly consented to wearing a stun belt at trial, he waived his contention that he was denied a fair trial on the ground that he was restrained"]).

Here, by contrast, the trial court was never aware that defendant was wearing a stun belt and defendant never consented to its use. The decision to require defendant to wear the belt—a decision that belongs solely to the court—was made by the Sheriff's Department pursuant to its standing policy, and not in response to a specific security concern regarding defendant. *Schrock* is factually similar, except that the defendant there "advised [counsel] that he was wearing the stun belt" but "did not complain about it," suggesting that he may have consented to its use (108 AD3d at 1222).⁶ Then-Justice Fahey dissented, arguing that "the *usurpation* of the court's power to determine

6. Although it seems unfathomable that a defendant would voluntarily agree to such an inhumane form of restraint, a defendant may knowingly consent to the use of a stun belt before trial and preemptively relieve the court of its duty to make a finding as to the need for the restraint. In the absence of that pretrial consent, however, a court's failure to make a finding of need is error. Unlike in *Cooke*, defendant here did not consent to relieve the court from its obligation, and unlike in *Schrock*, he alleges that he registered his objection to his attorney. The majority misstates my basis for distinguishing *Cooke* (majority mem at 939 n 1). It is not my view that "there was no mode of proceedings error in *Cooke* because the defendant there 'retroactive[ly]' consented to wearing a stun belt," nor do I mean that defendant's retroactive consent could have cured a mode of proceedings error (*id.*). Instead, as I explain, this case involves a mode of proceedings error whereas *Cooke* did not. The mode of proceedings error here is the *usurpation of the court's authority to determine the need for a stun belt*, not the court's failure to make a necessity determination. As to consent, a defendant cannot consent to the sheriff's deputies acting in the place of the judge (a mode of proceedings error), but as we held in *Cooke*, a defendant can consent to wearing a

(n. cont'd)

whether to require defendant to wear a stun belt is no different from the *delegation* of court powers found to have constituted mode of proceedings errors” (*id.* at 1227 [Fahey, J., dissenting]).⁷ As he explained, “[t]he error . . . lies not in the fact that defendant had to wear a stun belt, but in the fact that the Sheriff usurped the power of the court to make a determination regarding the use of the stun belt to restrain defendant” (*id.*). I find our former colleague’s reasoning sound. The Sheriff’s actions denied the court the opportunity to “exercise[] full and proper control over the application of that device to defendant” (*id.*), and that usurpation strikes at the heart of the integrity of the judicial process. Quite simply, “[w]e cannot allow court personnel or law enforcement officers to exercise powers reserved to the court” (*id.*).

III.

Defendant also contends that counsel was ineffective for failing to object to the unjustified use of the stun belt. I disagree with the majority that there exist outstanding factual issues that require remittal (majority mem at 939-940).

There is no question of fact as to whether defendant’s signed notices provided evidence that he consented to wearing the stun belt (majority mem at 940). In his CPL 440.10 motion and Appellate Division brief, defendant repeatedly asserted that he was “forced” to wear the stun belt. In response to the motion, the District Attorney conceded that the use of the stun belt without the knowledge or involvement of the court was error—though harmless and unpreserved—and then further conceded before the Appellate Division that “based on the exhibits attached to [the 440.10] motion, it appears that, indeed, the belt was required by the Sheriff’s department to be used as a security device during the trial.” Thus, the District Attorney did not controvert defendant’s representation that he was forced to wear the belt but instead accepted it as fact, and has never argued that defendant gave his express consent to wear the stun belt nor that consent is a ground for rejecting his CPL 440.10 motion. Indeed, the word “consent” does not appear in the District Attorney’s submissions to the motion court, the Ap-

stun belt and thus waive a different ground for reversal, i.e., that imposition of the restraint denies them a fair hearing (24 NY3d at 1197).

7. The Fourth Department has repeatedly rejected that view (*see id.* at 1224; *People v Osman*, 174 AD3d 1477, 1479-1480 [4th Dept 2019], *lv denied* 34 NY3d 1080 [2019]; *People v Ashline*, 124 AD3d 1258, 1259 [4th Dept 2015], *lv denied* 27 NY3d 1128 [2016]).

pellate Division, or this Court. To the extent the majority suggests the District Attorney may argue otherwise on remittal, it is well established that a party “is precluded from inequitably adopting a position directly contrary to or inconsistent with an earlier assumed position in the same proceeding” (*Maas v Cornell Univ.*, 253 AD2d 1, 5 [1999], *affd* 94 NY2d 87 [1999]). Any doubt that defendant was in fact involuntarily compelled to wear the stun belt—and that the parties and courts understood the same—is laid to rest by the Appellate Division’s determination that defendant “established that he was *forced* to wear a stun belt” (*People v Bradford*, 204 AD3d 1483, 1484 [4th Dept 2022] [emphasis added]). Forcing or requiring defendant to wear the belt necessarily means that defendant did not consent. That determination is binding.⁸

Nor is there an open question as to whether counsel had a strategic or otherwise legitimate reason for failing to object to the belt. That decision belongs solely to the defendant and counsel cannot choose to ignore or override a defendant’s objection. Decisions that are “personal” and “fundamental” belong to the accused (*People v Colville*, 20 NY3d 20, 31 [2012]), while trial strategy and tactical decisions are the purview of lawyers (see *People v Hogan*, 26 NY3d 779, 786 [2016]). However, the United States Supreme Court has recognized that, given the “physical burdens” and “pains” associated with restraints, along with their tendency to “confuse and embarrass” a defendant’s “mental faculties,” physical restraints “tend ‘materially to abridge and prejudicially affect [the] constitutional rights’” of the accused (*Deck v Missouri*, 544 US 622, 631 [2005], quoting

8. The Appellate Division did not decide the issue merely by accepting defendant’s factual allegations (majority mem at 940 n 2), but rather made an unambiguous determination that he “established that he was forced to wear a stun belt” (204 AD3d at 1484). The majority seeks to avoid this inconvenient truth: the Appellate Division’s determination cannot be revisited on remittal. If the determination is a factual finding, it is binding upon this Court and the lower courts (see *People v Garvin*, 30 NY3d 174, 184 [2017]; *Northern Westchester Professional Park Assoc. v Town of Bedford*, 60 NY2d 492, 499 [1983] [the Appellate Division has fact-finding authority which “is as broad as that of the trial court”]; see CPLR 5501 [c]). Alternatively, if the Appellate Division found as a legal matter that defendant was forced to wear the stun belt, then that determination is the law of the case and likewise binds the motion court upon remand (see *People v Evans*, 94 NY2d 499, 503 [2000] [“The term ‘law of the case’ is (sometimes used) to describe the doctrine requiring a lower court, on remand, to follow the mandate of the higher court” but primarily refers to the “the practice of courts generally to refuse to reopen what has been decided”]). Thus, no matter how the Appellate Division’s language is interpreted, there is no basis for this Court to reject or revisit its determination.

People v Harrington, 42 Cal 165, 168 [1871]). Stun belts are a particularly barbaric form of restraint (*see* Olson, *supra*). Thus, whether to object to physical restraints—handcuffs, shackles or stun belts—implicates defendant’s bodily integrity and the right to a fair trial. The majority is incorrect that counsel may have “had a legitimate explanation for declining to object” (majority mem at 940). Counsel cannot refuse to present their client’s objection to the court. Nor may counsel waive this fundamental right against their client’s wish. That decision belongs to the only person who bears the physical consequences and mental anguish of wearing a stun belt—the defendant.

IV.

The forcible imposition of a stun belt upon defendant without the knowledge or direction of the court was a fatal error which tainted the integrity of the judicial process and requires reversal. Even if the actions of the Sheriff’s Department did not constitute a mode of proceedings error, I would reverse on defendant’s alternative ground that counsel was ineffective for failing to object to the forced use of the stun belt. Because defendant did not consent to imposition of the stun belt and because defense counsel could not refuse to present his client’s objection to the court, there is no basis for remittal. Therefore, I would reverse and remand for a new trial.

Judges GARCIA, SINGAS, CANNATARO and HALLIGAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs. Judge TROUTMAN took no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and matter remitted to County Court, Steuben County, for further proceedings in accordance with the memorandum herein.

[217 NE3d 677, 195 NYS3d 657]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STANLEY HOLMES, Appellant.

Decided June 13, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 31, 2022. The Appellate Division affirmed a judgment, as amended, of the Supreme Court, New York County (Ruth Pickholz, J.), which had convicted defendant, upon a plea of guilty, of burglary in the second degree.

People v Holmes, 205 AD3d 653, reversed.

HEADNOTE**Crimes — Right to Representation Pro Se — Searching Inquiry**

The Appellate Division order affirming the judgment convicting defendant was reversed and a new trial ordered as the trial court recognized defendant as having unequivocally requested to proceed pro se but failed to conduct the required searching inquiry to ensure that defendant's waiver of the right to counsel was knowing, intelligent, and voluntary.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (Megan D. Byrne of counsel), for appellant.

Alvin L. Bragg, Jr., District Attorney, New York City (Michael J. Yetter and Andrew E. Seewald of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, and a new trial ordered. In contrast to *People v Duarte* (37 NY3d 1218 [2022]), the trial court here recognized defendant as having unequivocally requested to proceed pro se. However, the court failed to conduct the required “‘searching inquiry’ to ensure that the defendant’s waiver [of the right to counsel] is knowing, intelligent, and voluntary” (*People v Silburn*, 31 NY3d 144, 150 [2018] [some internal quotation marks omitted]).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Judge HALLIGAN took no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, and a new trial ordered, in a memorandum.
